

		prior to reconstructing/replacing the sidewalk slab at the subject premises, as required under the DVBE Agreement. The negligent work of DVBE breached the agreement and thereby caused the ongoing damage to the sidewalk whereby it continued to lift, which is was specifically hired to prevent.” (SACC ¶ 78.) The Agreement itself states is between the “City of Fullerton” and “DVBE ASAP INC.” (Ex. A.) The City alleges multiple times in the SACC that the Agreement is between itself and DVBE: - “Agreement between CITY and DVBE” (SACC ¶ 3.) - “The CITY alleges that it entered into an Agreement with DVBE on or about May 1, 2015” (SACC ¶ 26.) - “Under the CITY’s agreement with DVBE, DVBE was responsible for” (SACC ¶ 27.) As the City has not alleged sufficient facts demonstrating USIC was also a party to the Agreement, the Court sustains USIC’s demurrer to the third cause of action on this ground.
12.	JOHNSON VS. LUK 2026-01545106	DEMURRER TO COMPLAINT DEMURRER TO COMPLAINT MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE As to all 5 motions there are no tentative rulings. Counsel to appear.
13.	ALARID VS. CAMARILLO 2024-01377164	MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS SET ONE Plaintiff Dolores Alarid’s Motion to Compel Defendant Petra Camarillo’s Further Responses to Requests for Admission, Set One (RFAs) is DENIED. Plaintiff seeks further responses to 42 RFAs related to the subject collision. Defendant’s initial responses consist of objections with the statement, “Responding Party is unable to admit or deny this Request at this time.”

However, Defendant served further responses on 4/24/26 and 5/19/26 which include additional information. Defendant asserts the motion is moot as to the initial responses.

In reply, Plaintiff apparently concedes the further responses are sufficient. However, Plaintiff argues sanctions of \$3,385.00 are warranted because Defendant did not serve substantive responses until after the motion was filed.

Plaintiff's request for sanctions is denied. Plaintiff's counsel declares they sent a meet and confer letter to Defendant's counsel the day after receiving the initial responses, then filed the motion approximately ten days after receiving the initial responses. Plaintiff's counsel did not attempt to meet and confer in person, by phone, or videoconference as required under Code of Civil Procedure section 2016.040, amended effective 1/1/26. Therefore, sanctions are denied because Plaintiff has not demonstrated a diligent attempt to meet and confer before filing the motion.

MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION

Defendant Doordash's Motion for Summary Judgment is DENIED as to the first cause of action and GRANTED as to the second cause of action.

Plaintiff's objections (ROA 155) are overruled except for objection #2 to the truth of statements contained within the traffic collision report, which are hearsay. (Evid. Code § 1200 et seq.; see *People v. Dixon* (2026) 118 Cal.App.5th 116, 136.)

Defendant's objections (ROA 140) are overruled. Plaintiff's expert opinions have sufficient foundation.

Legal Standard:

Code of Civil Procedure section 437c(c) provides, "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.

Section 437c(o)-(p) states:

“(o) A cause of action has no merit if either of the following exists:
(1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.
(2) A defendant establishes an affirmative defense to that cause of action.

(p) For purposes of motions for summary judgment and summary adjudication:

[¶]

(2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

Summary of Facts:

This case arises from a collision at approximately 8:40 p.m. on 3/26/23 on Whittier Blvd. in La Habra. (Defendant’s Undisputed Material Fact [UMF] 1.) Defendant asserts that decedent Noah Rodriguez was driving while intoxicated and violating the 40 mile-per-hour speed limit while lane splitting on his motorcycle before he lost control and hit a vehicle. (UMFs 2-8.)

Plaintiff disputes whether and to what extent Rodriguez was at fault for the collision. (Plaintiff’s Responses to UMFs 2-8 and Plaintiff’s Additional Facts [PAFs] 1-9.) Plaintiff’s accident reconstruction expert Mr. Yates opines that Defendant Camarillo, who was driving her Honda Pilot while completing a delivery for Defendant Doordash, swerved to the left and bears at least partial fault. (Id.)

Plaintiff’s First Amended Complaint (FAC) alleges claims for wrongful death and vicarious liability.

Application:

Doordash asserts (1) Camarillo did not drive negligently, (2) Plaintiff cannot show Doordash failed to train/supervise Camarillo, and (3) Doordash is not vicariously liable for the acts of its independent contractors under Prop 22.

First Cause of Action – Wrongful Death:

This claim includes the allegation that Defendant was “negligent in [its] failure to train and supervise their drivers.” (FAC, ¶ 17.)

First, Plaintiff has presented sufficient evidence to create a triable issue as to whether Camarillo operated her vehicle negligently. Based on surveillance video of the incident, Plaintiff’s accident reconstruction expert opines that the physical evidence is consistent with Camarillo’s vehicle swerving left, causing contact with Rodriguez’s motorcycle. (Yates Decl., ¶¶ 6-23.) He opines, “DoorDash’s position, as I understand it, is that Mr. Rodriguez alone caused the collision by lane splitting, speeding, swerving, and/or losing control. From an accident reconstruction standpoint, that conclusion is not compelled by the physical evidence. Even if Mr. Rodriguez was lane splitting, and even if he was traveling faster than the surrounding traffic, the physical evidence still supports a conclusion that movement or encroachment by the Honda Pilot contributed to the collision.” (¶ 18.)

At this stage, Mr. Yates’s declaration is sufficient to demonstrate a factual dispute as to the issue of Ms. Camarillo’s negligence.

Next, Defendant contends that Plaintiff cannot support its negligence-based claims because Camarillo was an independent contractor who was not “supervised” by Defendant, and Defendant met its training obligation by providing a safety course. (UMF 13.)

Plaintiff does not identify any legal authority requiring additional training measures, or any prior incidents involving unsafe driving by Camarillo. However, Plaintiff points to Camarillo’s testimony that she was able to begin driving without training, videos, or instructions. (PAF 33.) Defendant does not resolve this issue in reply.

Therefore, there is a triable issue as to the first cause of action because there is a dispute as to whether Defendant provided any safety training to Camarillo. (FAC, ¶ 17.)

Second Cause of Action – Vicarious Liability:

Defendant contends Camarillo was considered an independent contractor under Proposition 22, enacted in 2020 as Business & Professions Code sections 7448-7467. Section 7451 states the following:

“Notwithstanding any other provision of law, including, but not limited to, the Labor Code, the Unemployment Insurance Code, and any orders, regulations, or opinions of the Department of Industrial Relations or any board, division, or commission within the

Department of Industrial Relations, an app-based driver is an independent contractor and not an employee or agent with respect to the app-based driver's relationship with a network company if the following conditions are met:

(a) The network company does not unilaterally prescribe specific dates, times of day, or a minimum number of hours during which the app-based driver must be logged into the network company's online-enabled application or platform.

(b) The network company does not require the app-based driver to accept any specific rideshare service or delivery service request as a condition of maintaining access to the network company's online-enabled application or platform.

(c) The network company does not restrict the app-based driver from performing rideshare services or delivery services through other network companies except during engaged time.

(d) The network company does not restrict the app-based driver from working in any other lawful occupation or business.”

“Under section 7451, a driver for an app-based transportation or delivery company, such as... DoorDash, Inc., is an independent contractor and not an employee of the company as long as several conditions are met.” (*Castellanos v. State of California* (2024) 16 Cal.5th 588, 595.)

“[T]he hirer of an independent contractor is usually not held liable for injuries to the contractor or its employee.” (*Gravelin v. Satterfield* (2011) 200 Cal.App.4th 1209, 1214.)

Here, Doordash asserts all four conditions were met regarding Camarillo’s work at the time of the collision. (UMFs 10-20.) Therefore, Defendant argues it cannot be vicariously liable for Camarillo’s alleged negligence.

Plaintiff argues Prop 22 does not cover third-party tort liability. Plaintiff argues *Castellanos, supra*, only held that Prop 22 is valid as to the workers’ compensation scheme but did not address issues of vicarious tort liability. Plaintiff further asserts the language of section 7451 limits its scope to “the app-based driver’s relationship with a network company” and does not extend to the relationship between the company and third parties such as Plaintiff.

In reply, Defendant concedes there is no case law deciding the issue, but asserts that most trial courts have held section 7451 governs third-party tort claims. (Reply, p. 6.) Moreover, Defendant argues that by requiring delivery companies to maintain liability insurance of \$1 million to compensate third parties, Prop 22 reflects an intent to encompass tort liability and ensure that third parties are compensated for injuries involving app drivers without application of vicarious liability. (Bus. & Prof. Code § 7455(f)(1).)

	Defendant further argues the history of Prop 22 reflects an intent to exempt app-based drivers from the application of AB 5, which used the “ABC test” to determine independent contractor status. (Lab. Code § 2775.) Moreover, Defendant contends the phrase “notwithstanding any other provision of law” in section 7451 reflects that it was intended to apply instead of the other independent contractor tests for vicarious liability. In the absence of binding case law, the Court finds Defendant’s statutory analysis more persuasive than Plaintiff’s analysis. The broad phrase “notwithstanding any other provision of law,” combined with the \$1 million third party liability insurance requirement demonstrate that Prop 22 is intended to encompass the scope of third-party tort liability. Plaintiff argues there is a dispute regarding whether Camarillo met the four-part test of section 7451 because Defendant fails to establish Camarillo’s agreement to its independent contractor agreement and maintained some control over whether a delivery driver could accept deliveries at any time. However, Defendant has adequately proven Camarillo’s electronic acceptance of its independent contractor terms, and that fact that certain drivers could earn the right to work at any time does not demonstrate that Doordash “unilaterally prescribe[d] specific dates, times of day, or a minimum number of hours....” Therefore, the motion is granted as to the second cause of action for vicarious liability.
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